

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

11. NIKI WILLIAMSON V. MICHAEL WILLIAMSON

24FL0835

On March 24, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees and sanctions. She filed her Income and Expense Declaration concurrently therewith. All required documents were mail served on March 26th. She filed an amended RFO on April 7th, which was served on May 14th.

Petitioner filed an updated Income and Expense Declaration on June 3rd along with a declaration in support thereof and a supplemental declaration, however both of these documents contain the caption for Candelaria Purcell v. Dane Purcell therefore the court has not read or considered them.

Petitioner filed and served another supplemental declaration on June 5th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the moving papers were properly served on Respondent and he chose not to oppose the requests made therein. The court therefore treats his failure to do so as an admission that the requests made by Petitioner have merit.

Petitioner is requesting spousal support orders and attorney's fees in the amount of \$5,000. She further requests sanctions pursuant to Family Code §§ 271, 2040, and 245 for failure to comply with the court's February 27, 2025 order and violation of the ATROS. She does not specify how much she is seeking in sanctions. She asks that Respondent be ordered to produce his Preliminary Declaration of Disclosure (PDD) within 30 days of the court's order. Finally, she asks that Respondent be ordered to transfer title to the Audi to Petitioner's name.

In her supplemental declaration, Petitioner also asks that Respondent be ordered to provide all documents necessary to evaluate the residence, including current mortgage statements, loan information, and documents showing the current loan balance. She requests Respondent provide a full accounting of any 401(k), retirement, stock, savings, and other asset withdrawals. And she asks the court to order appropriate relief regarding the health insurance. The court declines to rule on each of the aforementioned requests as they were raised in the supplemental declaration and are outside the scop of the RFO. Therefore they are not properly before the court and cannot be ruled on.

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Regarding the request to compel the PDD, Family Code section 2104 imposes on each party the obligation of making a preliminary disclosure of assets within the timeframe specified. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). “[T]he court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney’s fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

According to the file, Petitioner has complied with her disclosure requirements and there is no Declaration Regarding Service of Declaration of Disclosure filed by Respondent. As such, the request to compel Respondent’s PDD is granted. Respondent is ordered to serve his full and complete Preliminary Declaration of Disclosure no later than July 18, 2026.

Respondent is sanctioned \$1,000 as and for attorney’s fees pursuant to Family Code § 2107. This amount is to be paid directly to Petitioner’s attorney and may be paid in one lump sum or in monthly increments of \$100 commencing on July 1, 2026 and continuing on the 1st of each month thereafter until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

The request for sanctions under Family Code § 2040 is denied as Petitioner has failed to establish a basis for sanctions under this section. Likewise, Section 245 is regarding continuances and therefore the request for sanctions pursuant to Family Code § 245 is denied.

Petitioner’s request for sanctions under Family Code § 271 is granted. Family Code section 271 states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney’s fees and costs pursuant to this section is in the nature of a sanction.” Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to

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impose a sanction that would create an “unreasonable financial burden on the party against whom the sanction is imposed.” *Id.*

According to Petitioner’s moving papers, Respondent has failed to comply with court orders and has violated the ATROS by removing her from his health insurance and has withdrawing funds from his 401k. Both of which are violations of the ATROS. As such, the court finds that his actions have frustrated the policy of the law to promote settlement and reduce the costs of litigation. Respondent is sanctioned in the amount of \$1,000 pursuant to Family Code § 271. This amount is to be paid directly to Petitioner’s attorney and may be paid in one lump sum or in monthly increments of \$100 commencing on July 1, 2026 and continuing on the 1st of each month thereafter until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Regarding the request to transfer title to the Audi, Respondent is ordered to cooperate with Petitioner and her counsel to immediately execute all documents and take all steps necessary to transfer title to the 2015 Audi A3 VIN WAUACGFF0F1002170 to Petitioner.

Turning to the issue of support, utilizing the same figures as outlined in the attached Xspouse report, the court finds that spousal support per the Alameda formula is \$4,120 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$4,120 per month as and for temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. The court orders the temporary spousal support order effective April 1, 2026.

The court finds the above order results in arrears in the amount of \$12,360 through and including June 1, 2026. The court orders Respondent pay Petitioner \$515 on the 15th of each month until paid in full (approximately 24 months). If a payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

Finally, turning to the issue of need-based attorney’s fees, the public policy of Family Code section 2030 is to provide “at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation.” In Re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party’s rights. It “is not the redistribution of money from the greater income party to the lesser income party,” but rather “parity.” Alan S. v. Sup. Ct., 172 Cal. App. 4th 238, 251(2009). In the face of

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a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

Here, the court does find there to be a disparity in income, even after the sanctions and support orders awarded herein. As such, the request for attorney's fees is granted. Respondent is ordered to pay Petitioner's attorney \$5,000. This amount may be paid in one lump sum or in monthly increments of \$500 with payments commencing on July 15, 2026 and continuing until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT DECLINES TO RULE ON THE REQUESTS MADE IN PETITIONER'S SUPPLEMENTAL DECLARATION WHICH ARE OUTSIDE THE SCOPE OF THE RFO AND ARE THEREFORE NOT PROPERLY BEFORE THE COURT.

THE REQUEST TO COMPEL RESPONDENT'S PDD IS GRANTED. RESPONDENT IS ORDERED TO SERVE HIS FULL AND COMPLETE PRELIMINARY DECLARATION OF DISCLOSURE NO LATER THAN JULY 18, 2026.

RESPONDENT IS SANCTIONED \$1,000 AS AND FOR ATTORNEY'S FEES PURSUANT TO FAMILY CODE § 2107. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY AND MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$100 COMMENCING ON JULY 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

THE REQUEST FOR SANCTIONS UNDER FAMILY CODE § 2040 IS DENIED AS PETITIONER HAS FAILED TO ESTABLISH A BASIS FOR SANCTIONS UNDER THIS SECTION. LIKEWISE, SECTION 245 IS REGARDING CONTINUANCES AND THEREFORE THE REQUEST FOR SANCTIONS PURSUANT TO FAMILY CODE § 245 IS DENIED.

PETITIONER'S REQUEST FOR SANCTIONS UNDER FAMILY CODE § 271 IS GRANTED. RESPONDENT IS SANCTIONED IN THE AMOUNT OF \$1000 PURSUANT TO FAMILY CODE § 271. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S

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ATTORNEY AND MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$100 COMMENCING ON JULY 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

REGARDING THE REQUEST TO TRANSFER TITLE TO THE AUDI, RESPONDENT IS ORDERED TO COOPERATE WITH PETITIONER AND HER COUNSEL TO IMMEDIATELY EXECUTE ALL DOCUMENTS AND TAKE ALL STEPS NECESSARY TO TRANSFER TITLE TO THE 2015 AUDI A3 VIN WAUACGFF0F1002170 TO PETITIONER.

TURNING TO THE ISSUE OF SUPPORT, UTILIZING THE SAME FIGURES AS OUTLINED IN THE ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$4,120 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$4,120 PER MONTH AS AND FOR TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THE COURT ORDERS THE TEMPORARY SPOUSAL SUPPORT ORDER EFFECTIVE APRIL 1, 2026.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$12,360 THROUGH AND INCLUDING JUNE 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$515 ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 24 MONTHS). IF A PAYMENT IS LATE OR MISSED THE REMAINING BALANCE IS DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.

THE REQUEST FOR ATTORNEY'S FEES IS GRANTED. RESPONDENT IS ORDERED TO PAY PETITIONER'S ATTORNEY \$5,000. THIS AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$500 WITH PAYMENTS COMMENCING ON JULY 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Husband	Wife	Monthly figures		Cash Flow		
#of children	0	0	2026		Guideline	Proposed	
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	12866	12866
Filing status	MFJ->	<-MFJ	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	1 *	Husband		Husband		
Wages+salary	16153	0	Husband	11725	Payment cost/benefit	-4120	-4120
Self-employed income	0	0	Wife	1141	Net spendable income	7606	7606
Other taxable income	0	1404	Total	12866	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	59%	59%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	4428	4428
401(k) employee contrib	0	0	Alameda SS	4120	Dep. exemption value	0	0
Adjustments to income	0	0	Total	4120	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	11486	11486
CS paid prev marriage	0	0	Settings changed		Wife		
Health insurance	0	0			Payment cost/benefit	4120	4120
Other medical expense	0	0			Net spendable income	5260	5260
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	41%	41%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	263	263
Qual bus income ded	0	0	SS	4120	Dep. exemption value	0	0
Required union dues	0	0	Total	4120	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Husband pays Guideline SS, Proposed SS

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12. DCSS V. TYLER GODMAN (OTHER PARENT: MALINDA SNYDER) PFS20140344

Other Parent filed a Request for Order (RFO) on March 27, 2026, following the court's denial of her ex parte request for emergency orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 14, 2026, and a review hearing on June 18, 2026. Upon review of the court file, there is no Proof of Service showing either Petitioner or Respondent were properly served.

Other Parent filed a Declaration on April 20, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

Both parties appeared at the CCRC appointment. The parties were unable to reach any agreements. A report with recommendations was filed with the court on May 14, 2026. Copies were mailed to the parties on May 26, 2026.

Neither Petitioner nor Respondent has filed a Responsive Declaration.

The court has read and considered the May 14th CCRC report. The court finds good cause to proceed, despite the lack of proper service. The court finds the recommendation to maintain all current orders in full force and effect and for Respondent and Other Parent to participate in a co-parenting course online to be in the best interest of the minor. The court adopts the recommendations as set forth.

All prior orders remain in full force and effect. Other Parent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE LACK OF PROPER SERVICE. THE COURT FINDS THE RECOMMENDATION TO MAINTAIN ALL CURRENT ORDERS IN FULL FORCE AND EFFECT AND FOR RESPONDENT AND OTHER PARENT TO PARTICIPATE IN A CO-PARENTING COURSE ONLINE TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. OTHER PARENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.